

Rekhaben vs Shaileshbhai on 15 February, 2010

Author: H.K.Rathod

Bench: H.K.Rathod

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MCA/1331/2008 5/ 7 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

MISC.CIVIL
APPLICATION - FOR TRANSFER No. 1331 of 2008

With

MISC.CIVIL
APPLICATION - FOR TRANSFER No. 2269 of 2008

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REKHABEN
D/O CHHAGANBHAI KHIMJIBHAI RUPAPARA W/O - Applicant(s)

Versus

SHAILESHBHAI
BAVANJI SAVALIA - Opponent(s)

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Appearance
:
MR
PN BAVISHI for
Applicant(s) : 1,

RULE SERVED for Opponent(s) : 1,

MR VIMAL M

PATEL for Opponent(s) :

1,

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CORAM

:

HONOURABLE

MR.JUSTICE H.K.RATHOD

Date

: 15/02/2010

ORAL

ORDER

1. Heard learned advocate Mr.P.N.Bavishi for applicant wife and learned advocate Mr.Vimal Patel for respondent husband.

2. Two applications have been filed; MCA No.1331 of 2008 by wife and MCA No.2269 of 2008 by husband. The wife has prayed to transfer proceedings at Bharuch from the Court at Dhoraji and husband has filed application with a prayer to transfer the proceedings at Dhoraji from the Court at Bharuch. Both parties are objecting proceedings filed by each other.

3. Brief facts of present applications are that husband and opponent got married according to Hindu rites and customs at village Dhoraji, Taluka Upleta, District Rajkot. That after marriage, they were residing at village Rayadi, Taluka Jamkandorma, District Rajkot. That prior to marriage, the opponent wife was residing with her parents at village Samadhiyala. Before about one year the wife who had gone to village Samadhiyala on the death of her grandfather did not return to the husband. The wife filed CR No.3004/2007 on 26.2.2007 under Section 498A, 406, 417, 420 and 114 of IPC against husband, his parents, brother and sisters, uncle and aunt making false allegation of impotency. Said complaint is filed by wife at Patanvav Police Station which is nearer to village Samadhiyala. On 15.10.2007, wife has filed HMP No.78 of 2007 under Section 13 of Hindu Marriage Act before the Principal Senior Civil Judge, Bharuch by wrongly stating the address of Bharuch as applicant's address which in fact is the address of her sister, who is residing in Surat since 1 year on rent. The said application is filed at the instance of husband of sister of the wife. On 15.12.2007 husband has filed HMP No.11 of 2007 before the Senior Civil Judge, Dhoraji for restitution of conjugal rights. The certificate is given by Samadhiyala Gram Panchayat and affidavits are given by two residents of village Samadhiyala stating that wife is residing with her father at village Samadhiyala. The wife has filed present application with a prayer to transfer HMP No.11 of 2007 is pending before the Court at Dhoraji to the Court at Bharuch and husband has filed present application with a prayer to transfer HMP No.78 of 2007 filed by wife.

4. In the application filed by husband, affidavit-in-reply is filed by wife. Similarly, in application filed by wife, the affidavit-in-reply is also filed by husband which are on record.

5. I have considered submissions made by both learned advocates and also perused the averments made in two applications and affidavit-in-reply of respective parties. Learned advocate Mr.Vimal Patel submitted that temporary residence which has been created by wife at Bharuch and in fact, it is a residence of her sister and such temporary residence cannot be considered to be a cause of action which has been occurred there in relying upon decision of Apex Court in case of Smt.Jeewanti Pandey v. Kishan Chandra Pandey reported in AIR 1992 SC 3. Relevant observations are in Para.12 which is quoted as under :

12. In order to give jurisdiction on the ground of residence , something more than a temporary stay is required. It must be more or less of a permanent character, and of such a nature that the court in which the respondent is sued, is his natural forum. The word reside is by no means free from all ambiguity and is capable of a variety of meanings according to the circumstances to which it is made applicable and the context in which it is found. It is capable of being understood in its ordinary sense of having one's own dwelling permanently, as well as in its extended sense. In its ordinary sense residence is more or less of a permanent character. The expression resides means to make an abode for a considerable time; to dwell permanently or for a length of time; to have a settled abode for a time. It is the place where a person has a fixed home or abode. In Webster's Dictionary, to reside has been defined as meaning to dwell permanently or for any length of time , and words like dwelling place or abode are held to be synonymous. Where there is such fixed home or such abode at one place the person cannot be said to reside at any other place where he

had gone on a casual or temporary visit, e.g. for health or business or for a change. If a person lives with his life and children, in an established home, his legal and actual place of residence is the same. If a person has no established home and is compelled to live in hotels, boarding houses or houses or others, his actual and physical habitation is the place where he actually or personally resides.

6. Learned advocate Mr.Vimal Patel submitted that sister of wife also purchased the residential property at Dhoraji. The husband is the agriculturist residing with his father and wife residing with her sister and parents are residing at Samadhiyala.

7. In light of this background, learned advocate Mr.Bavishi submitted that there is a distance of about 300 km. between Bharuch and Dhoraji and present Misc. Civil Application is filed by wife first in point of time and second application is filed by husband being a counter blast. Therefore, both learned advocates insist to transfer the proceedings at the place where they are residing.

8. The question to be considered by this Court while exercising the powers under Section 24 of the Code of Civil Procedure is, whether in the interest of justice and considering convenience of respective parties, the proceedings are required to be transferred from one Court to another Court or not ?

8.1 Looking to facts that marriage was solemnized at Dhoraji on 5.9.2004 and parents of wife were residing at village Samadhiyala. The wife was residing with parents at village Samadhiyala and after marriage, wife was residing with her husband at village Rayadi. The dispute started in the year 2007 and thereafter, proceedings have been initiated by both parties against each other. Learned advocate Mr.Bavishi has argued to some extent on merits that husband is impotence and therefore, not able to satisfy requirement of wife due to marriage. Therefore, divorce petition was filed by wife at Bharuch. He also submitted that parents of wife are illiterate and sister of wife is educated. Therefore, she required help of sister and she shifted from village Samadhiyala to Bharuch for getting help of husband of her sister. It is also clear from record that the sister of wife has purchased a residential property at Dhoraji where address is also given by husband of sister of wife at Dhoraji. The village Samadhiyala, Dhoraji and Rayadi are nearby villages. That Patanvav Police Station is also in a short distance from Dhoraji. The criminal case No.3004 of 2007 filed on 26.2.2007 by wife of husband at Patanvav Police Station which is pending before the Civil Court, Dhoraji. The husband has filed proceedings being HMP No.11 of 2007 under Section 9 of Hindu Marriage Act for restitution of conjugal rights. The wife has shifted from her parents house from village Samadhiyala to Bharuch, is considered to be a temporary shifting of wife, but it is also equally true that if wife attends the proceedings at Dhoraji, then village Samadhiyala is very nearby to Dhoraji. The husband is an agriculturist having joint family at Dhoraji, residing with parents and other family members. So husband has to attend the proceedings at Bharuch which proceedings is filed by wife but considering distance of about 300 km. and there is no relative residing in nearby area of Bharuch, therefore, it will cause inconvenience to husband if he has to attend the only one proceeding at Bharuch. In comparison to that hardship which has been caused to husband, if wife attends the proceedings at Dhoraji; one is filed by her and another by husband, then wife having her parents' house at Samadhiyala which is nearer to Dhoraji and she can stay over Samadhiyala and attend

proceedings at Dhoraji so there is no inconvenience caused to wife.

8.1 Therefore, looking to comparative hardship of husband and wife and considering temporary residence created by wife while shifting herself to sister's house, according to my opinion, the proceedings filed by husband at Civil Court, Dhoraji, if it is transferred at Bharuch that will cause great inconvenience and hardship to the husband, who is agriculturist. However, wife is not doing any activity and not working anywhere as per averments made by learned advocate Mr.Bavishi.

9. Therefore, according to my opinion, the proceedings filed by wife which is pending before the Principal Senior Civil Judge, Bharuch being HMP No.78 of 2007 is required to be transferred to the Court of Principal Senior Civil Judge, Dhoraji where husband has filed proceedings being HMP No.11 of 2007. Therefore, MCA No.2269 of 2008 by the husband is allowed and MCA No.1331 of 2008 by wife is dismissed.

10. Accordingly, it is directed to Principal District Judge, Bharuch to transfer HMP No.78 of 2007 filed by wife from the Court of Principal Senior Civil Judge, Bharuch to the Principal District Judge, Rajkot immediately. After receiving papers from Principal District Judge, Bharuch, it is directed to Principal District Judge, Rajkot to immediately allot HMP No.78 of 2007 to Principal Senior Civil Judge, Dhoraji without delay and it is directed to Principal Senior Civil Judge, Dhoraji to decide both HMP No.11 of 2007 and HMP No.78 of 2007 together and fix on one date, so that wife can attend both proceedings on one date, so it will not cause inconvenience to wife. Therefore, the Principal Senior Civil Judge, Dhoraji is directed to issue notice to respective parties after receiving papers from Principal District Judge, Rajkot and inform both parties and thereafter, to decide both matters as early as possible.

(H.K.RATHOD,J.) (vipul)